

) Smt. Rathnamma vs) Hdfc Ergo General on 21 November, 2015

BEFORE THE MOTOR ACCIDENT CLAIMS TRIBUNAL
COURT OF SMALL CAUSES AT BENGALURU
(SCCH:15)

DATED: THIS THE 21st DAY OF NOVEMBER, 2015

PRESENT : Smt.K.Katyayini, B.Com., LL.B.,
XIII Addl.Small Cause Judge
& Member, MACT, Bengaluru.

MVC No.303/2015

Petitioner/s

1) Smt. Rathnamma,
W/o Late H.Shivarudraiah,
Aged about 50 years,

2) Smt. G.S. Vidya,
W/o D.H. Rajashekar,
Aged about 30 years,

and also at 8/8,
4th Main Road, 6th Cross,
Near Anjaneya Temple,
Gangondanahalli,
Nayandahalli,
Bengaluru - 39.

3) G.S. Vinay Kumar,
S/o Late H. Shivarudraiah,
Aged about 27 years,

4) G.S. Vikas,
S/o Late H. Shivarudraiah,
Aged about 23 years,

All are residing at No.9,
Thulasi Krupa, I A Cross,
S.V.G. Nagar, Mudala Palya,
Bengaluru-560 072.
(By Pleader - Sri.Basavaraju, M.)

(SCCH-15) 2 MVC.303/2015

V/s

Respondent/s

1) HDFC ERGO General
Insurance Company Limited,
No.14, 1st Floor,
H.M. Geneva House,
Cunningham Road,
Bengaluru-560 052.

(Insurer of motor cycle bearing
Registration No.KA-02 HS-9383)
(By Pleader - Sri.Madhu Kiran.)

2) Gowrav, S.,
S/o Shantha Kumar, M.,
Aged about 23 years,
R/at No.61, West of Chord Road,
I Stage, 6th Phase,
3rd Cross, Rajajinagar,
Bengaluru - 560 010.

(Owner cum rider of motor cycle
bearing Reg.No.KA-02 HS-9383)
(By Pleader - Sri.K.S.Vishwanath.)

JUDGMENT

Petitioners have filed the present petition under Section 166 of MV Act seeking compensation on account of death of Sri. Shivarudraiah, the husband of 1st petitioner and father of rest of the petitioners in the road traffic accident.

2. The brief case of petitioners is that on 06.08.2014 at about 05:40 p.m., the deceased being the rider of the motor cycle bearing registration No.KA-02 EC-5148 was proceeding from Mysore road. When he came near Sirsi Circle Junction as there was stop signal by the traffic police, he stopped his motor cycle. At that time, the rider of motor cycle bearing registration No.KA-02 HS-9383 came from the back side and dashed to his motor cycle.

b) Because of which the deceased jumped from his motor cycle and fell down; suffered severe head injuries and also injuries to the leg and became unconscious. He succumbed to the injuries on the way to hospital.

c) Accident took place solely due to the rash and negligent riding of the opposite motor cycle. Therefore, 2nd respondent being the RC owner cum rider of opposite motor cycle and 1st respondent being the insurer are jointly and severally liable to pay the compensation. Hence, prayed to dismiss the petition against it with costs.

3. In response to due service of notices, both the respondents have put their appearance through their respective counsels and filed their separate statement of objections to the main petition denying the petition averments.

b) However, 1st respondent has admitted the fact that he was the RC owner and rider of opposite motor cycle at the time of accident. But he has contended that the accident if any is on the sole negligent riding of the deceased himself and there is no fault on his part in occurrence of the accident.

c) He has contended that he had valid and effective driving licence and the policy was valid and in force with the 1st respondent as on the date of accident. Accordingly, prayed to dismiss the petition against it with costs.

d) Per contra, 1st respondent even has admitted the policy and its force on the date of accident, has contended that its liability if any is subject to the terms and conditions of the policy such as driving licence and the vehicular documents. It has denied the negligent act if any on the part of 2nd respondent and contended that the accident if any is solely due to the rash and negligent riding of the deceased himself and thereby prayed to dismiss the petition against it with costs.

4. On the above said pleadings of the parties, this Tribunal has framed the following issues.

1. Whether the petitioners prove that they are the LR's of the deceased?

2. Whether the petitioners prove that deceased Sri. H. Shivarudraiah was died in RTA arising out of accident alleged to have been taken place on 06.08.2014 at about 5:40 p.m. at Sirsi Circle Junction, Mysore Road, Bengaluru due to the rash and negligence of riding of the rider of Motor cycle bearing No.KA-02 HS-9383?

3. Whether the petitioners are entitled for compensation? If so, what amount & from whom?

4. What order or award?

5. To prove the above said issues and to substantiate their respective contentions, 1st petitioner herself has entered into witness box as PW-1. They have got examined Senior Manager, Syndicate Bank, Balepete Branch, Bengaluru as PW-2, the Proprietor of Sri Vinayaka Communications by name G.S. Vinay Kumar as PW-3. Totally got exhibited 19 documents and closed their side.

b) Per contra, 1st respondent got examined its Manager (Legal) as RW-1. Got exhibited 3 documents and closed its side. Heard both the sides on merits of the case. In support of oral arguments counsel for 2nd respondent has filed memo along with xerox copies of decisions reported in,

1) AIR 1971 SC 1865 and

2) 2010 AIR SCW 769.

This Tribunal has carefully gone through the above observed reported decisions and perused the record.

6. Now the findings of this Tribunal on the above said issues are answered in the;

1. Issue No.1 : Affirmative.

2. Issue No.2 : Petitioners are entitled for the compensation of Rs.8,77,000/- at the rate of 50:10:20:20 together with interest at the rate of 9% p.a. from the date of petition till its realization in its entirety from 2nd respondent.

3. Issue No.3 : As per final order for the following reasons.

REASONS

7. ISSUE No.1:- It is the case of petitioners that they are respectively the wife and children of the deceased. To establish that apart from the oral evidence of 1st petitioner they have produced notarised copy of Aadhaar Cards 4 in nos. at Ex.P-16, the address of 1st and 3rd and 4th petitioners in the Aadhaar card at Sl.No.1 to 3 in Ex.P-16 series are one and the same. The address of the 2nd petitioner shown in the Aadhaar card appears to be of her husband's house.

8. Moreover, it is in the cross-examination of 1st petitioner that 2nd petitioner is given in marriage and she is residing with her husband and other petitioners i.e. their son 3rd and 4th petitioners are not yet married and they are residing together which is not at all disputed by the other side.

9. On the other hand, in the police papers particularly in the inquest mahazar at Ex.P-6, there is statements of 1st and 3rd and 4th petitioners which are similar to each other and it is there that 1st petitioner is the wife and 2nd to 4th petitioners are the children wherein 2nd petitioner given in marriage and residing with her husband.

10. All the above documents are not disputed by the other side which are in clear consonance with the case of petitioners about their alleged relationship with the deceased. Therefore, petitioners with the oral evidence of 1st petitioner and the documents observed above have successfully established that their relationship with the deceased. Therefore, issue No.1 is answered in affirmative.

11. ISSUE No.2:- If the above observed pleadings of the parties are taken into consideration, 2nd respondent has disputed only the negligent act on his part in occurrence of the accident. He has specifically contended that the accident took place because of the negligent riding of the deceased.

12. On the other hand, 1st respondent even has denied the entire case of the petitioners, it has also contended that the accident if any is because of the negligent riding of the deceased. Moreover, in the cross- examination of 1st petitioner even it is elicited that she did not see the accident personally, it is suggested that the accident took place because of the negligent act of the deceased only and there is no fault on the part of opposite motor cycle i.e. 2nd respondent.

13. Of course, the said suggestion is denied by 1st petitioner. But it indicates that absolutely there is no dispute between the parties with regard to the alleged accident; the date, time and place of the accident; the vehicles involved in the accident and the fact that the deceased and 2nd respondent are the respective riders of the two wheelers at the time of accident. So, the only point now that remained for the due consideration of this Tribunal for the proper adjudication of this issue is that on whose fault the present accident has taken place.

14. To establish that as observed above, 1st petitioner herself has entered into witness box as PW-1. She has filed her affidavit evidence wherein she has reiterated the above observed petition averments. She has specifically deposed that the accident took place because of the negligent riding of the opposite two wheeler by the 2nd respondent.

15. But as observed above, it is in her cross- examination she did not see the accident personally. Therefore, whatever she has deposed with regard to the manner of the accident and the negligent act on the part of 2nd respondent in occurrence of the accident is nothing but hearsay evidence.

16. Even, 2nd respondent has denied his negligent act in occurrence of the accident, despite of his appearance through his counsel; filing his statement of objections to the main petition and cross-examined the petitioners' witnesses, his counsel denied to cross- examine RW-1 i.e. the officer of 1st respondent on the ground that there is criminal case pending for adjudication before the Hon'ble CCH-65 for the offence punishable under Section 304 of IPC and not for Section 304(A) of IPC and since there is trial pending, this Tribunal cannot come to the conclusion about the negligent act on the part of 2nd respondent.

17. The said ground is rejected and despite of opportunity to cross-examine RW-1, the counsel submitted that he is not ready to cross-examine the witness i.e. RW-1. Subsequently also, he has not chosen to step in to the witness box in support of his contention. Hence, there is not any iota of independent evidence on his behalf in support of his defence on negligent aspect.

18. Per contra, 1st respondent got examined its Manager (Legal) as RW-1 who has filed his affidavit evidence wherein he has concentrated only with regard to the defence of 1st respondent on breach of policy conditions on drunk and drive, there is no specific defence and evidence in his affidavit with regard to the negligent aspect which is taken by the 1st respondent in its statement of objections to the main petition.

19. In his cross-examination, RW-1 has admitted that as on the date of accident, the policy was valid and in force and the insured vehicle rider i.e. 2nd respondent had valid and effective driving licence. He has denied the suggestion that to avoid liability in collusion with the police they got created Ex.R-2 and 3 i.e. true copies of FIR with complaint in crime No.219/2014 on the file of Cottonpet Police Station and the requisition of SHO of Cottonpet Police Station to SHO, Chikpet Police Station dated 06.08.2014.

20. But interestingly the said documents are exhibited on behalf of petitioners at Ex.P-1. Therefore, there is nothing on record to disbelieve the oral evidence of RW-1. However, so far as the rash and negligent aspect is concerned, there is no iota of evidence in the evidence of RW-1.

21. In support of their contention petitioners apart from oral evidence of 1st petitioner have also produced true copies of FIR with complaint before cottonpet police station, true copy of FIR before Chikpet police station with requisition of PI, cottonpet police station at Ex.P-1 and 2 observed above which are nothing but Ex.R-2 and

3.

22. They have also produced the true copies of the spot mahazar, spot sketch, seizer mahazar, inquest mahazar, PM report, statement of witnesses 6 in nos., notice under Section 133 of MV Act, reply to the said notice, MV report, FSL report, voluntary statement of accused and charge sheet respectively at Ex.P-1 to 1 to

14.

23. All the police papers categorically demonstrate that the jurisdictional police initially registered the criminal case against the 2nd respondent who was the rider of opposite motor cycle for the offence punishable under Section 304 of IPC and subsequently after the investigation they have charge sheeted him for the offence alleged.

24. Of course, Section 304 is penal class for the offence culpable homicide not amounting to murder. It is an admitted fact that either in the FIR or in the charge sheet, the jurisdictional police have not invoked the offences punishable under Sections 279 and 304 (A) of IPC i.e. rash and negligent riding of motor cycle and the death of the victim because of the rash and negligent riding of the motor cycle.

25. But it is an admitted fact and apparent on the face of the police papers that the accident took place because of the using of the motor cycle by the 2nd respondent. It is in the voluntary statement of the accused at Ex.P-13 that he was well known that the drunk and drive is an offence and drunk and drive may cause dangers to the public which may cause fatal injuries or the death and despite of that he used the vehicle in the drunken state and caused the death of the deceased.

26. Therefore, it appears that jurisdictional police have invoked higher offence i.e. the offence punishable under Section 304(A) of IPC instead of invoking offences punishable under Sections 279 and 304(A) of IPC but that itself will not affect the right of the petitioners to put forth the claim petition.

27. Even both the respondents have contended that the accident is because of the negligent riding of the deceased himself, there is no specific cross-examination on behalf of respondents on the police papers. On the other hand, it is an admitted fact and it is the submission of counsel for 2nd respondent while refusing to cross-examine RW-1/the insurance company officer that the criminal case pending against 2nd respondent for the offence punishable 304 of IPC and not for Section 304(A) of IPC and therefore, this Tribunal cannot come to the conclusion with regard to the drunk and drive and thereby negligent act on the part of 2nd respondent if any. So, it an admitted fact that the 2nd respondent is charge sheeted for the present accident and he is facing criminal trial.

28. Moreover, there is presumption with regard to the police papers that they are prepared by the investigating officers while discharging their official duties in investigation of a crime. Of course, the said presumption is rebuttal one, but no such rebuttal evidence let in by any of the respondents.

29. Therefore, if the entire evidence on record is taken into consideration, the preponderance of probabilities much tilts in favour of the case of petitioners than the defence raised on behalf of both the respondents. Hence, petitioners with the oral evidence of 1st petitioner and the police papers at Ex.P-1 to 14 have successfully established that the present accident is because of the riding of the opposite motor cycle by the 2nd respondent.

30. So far the death of the deceased because of the accidental injuries, absolutely there is no dispute. Moreover, the police papers are in support of the case of petitioners in that regard. Therefore, issue No.2 is answered in affirmative.

31. ISSUE No.3: In view of answering issues Nos.1 and 2 in affirmative, of course petitioners being legal heirs of the deceased are entitled for compensation. Now, in respect of quantum. It is the case of petitioners that the deceased was aged 62 years, was a Pigmy Collector in Syndicate Bank and also working in Vinayaka Communication, Nagarabhavi, Bengaluru and had income of Rs.14,488/- p.m.

32. To establish the age of the deceased, petitioners have not produced any document. However, it is in the police papers that he was aged 62 years. Nothing is there to discard the age of the deceased mentioned in the police papers. Hence, his age accepted as 62 years for which the proper multiplier applicable is 7.

33. To prove the avocation and income of the deceased, apart from the oral evidence of 1st petitioner they have also produced salary certificate 2 in nos. at Ex.P-15. The certificate at Sl.No.1 in Ex.P-15 series is issued by Syndicate Bank, Balepet Branch, Bengaluru. It is dated 07.11.2014 wherein it is stated that an amount of Rs.83,855/- has been credited to saving bank account of the deceased as the pigmy commission for the period from 01.04.2013 to 31.03.2014.

34. The salary certificate at Sl.No.2 at Ex.P-15 is issued by Vinayaka Communications dated 03.11.2014 and it has certified that an amount of Rs.90,000/- has been paid to the deceased as salary for the period of 01.04.2013 to 31.03.2014.

35. To establish the avocation and income of the deceased, as observed above petitioners have also got examined the present senior branch manager, Balepet, Bengaluru as PW-2 who has filed his affidavit evidence wherein he has stated that the deceased was appointed as pigmy commission agent in their branch on 20.02.1976 and he was at service till the date of his death.

36. It is also in his affidavit evidence that the deceased had been receiving commission and the same was being deposited to his SB account No.04352010028798. In support of his oral evidence he has produced Ex.P-17, the true copy of SB account statement extract of the deceased.

37. In his cross-examination he has deposed that he has not produced appointment letter of the deceased; except Ex.P-17, he has not produced any other document to establish that the deceased was a pigmy collector in their branch. He has also admitted that there is no mention with regard to source of the commission and it is only mentioned as commission in the accounts extract at Ex.P-17. At this stage he voluntarily deposed that, that is the normal course they have adopted.

38. He has also admitted the suggestion in his cross-examination that the commission varies on quantum of collection. He has denied the suggestion that there is no mention of commission for the month of June and July. At this stage he has deposed that he has produced the account extract only till 31.03.2014.

39. He has denied the suggestion that as per Ex.P- 15 the deceased worked as pigmy collector only upto 31.03.2014. At this stage he voluntarily deposed that it pertains only to particular financial year. He has admitted the suggestion that he has not produced any document to show that till August, 2014, the deceased worked in their bank. At this stage he voluntarily deposed he can produce the document in that regard.

40. To establish the 2nd salary slip at Ex.P-15 series, petitioners have also examined the proprietor of Sri. Vinayaka Communications as PW-3 who has filed his affidavit evidence wherein he has stated that he has paid total salary of Rs.90,000/- to the deceased during the period of 01.04.2013 to 31.03.2014 and he has issued certificate in that regard.

41. He has also produced Ex.P-18, the notarized copy of his appointment letter as a private agent and notarised copy of tax returns acknowledgment along with profit and loss account for the assessment year 2010-11 to 2012-13 3 in nos. pertain to him.

42. In his cross-examination he has admitted that the declared expenditure towards salary is Rs.92,483/- as shown in the tax returns at Ex.P-18. Now he is working alone and earlier he had assistants. But he has not stated how many assistants were working with him.

43. Admittedly in the tax returns at Ex.P-19, the amount shown in the salary head under the profit and loss account for the year 31.03.2012 is Rs.92,473/- and for the year 31.03.2011, it is Rs.89,430/- and for the year 31.03.2010, it is Rs.65,760/-.

44. So, in view of PW-3 not at all stating specific number assistants he had at the relevant point of time, it cannot be said that the deceased was only assisting him and the amount stated in the salary was paid only to the deceased.

45. In the salary of SB account extract produced by PW-2 the commission amount shown are in between Rs.6,000/- to Rs.9,640/-. Therefore, considering the variation in the commission depending upon on the collection, it is thought just and proper to take the notional income of the deceased considering the fact that he was a pigmy collector in the bank as well as part time worker to an agency at Rs.12,000/- p.m.

46. It is the case of petitioners that they were depending on the income of the deceased. But it is evident on record that 2nd respondent is given in marriage and she is residing with her husband. 3rd and 4th petitioners even are major children, since they are not married and residing together with their parents, it appears that they were depending on the income of the deceased. Therefore, it cannot be considered that 2nd petitioner was the dependent of the deceased. So far the rest of the petitioners of course they were depending on the income of the deceased.

47. It is the case of petitioners that they are respectively aged 50 years, 30 years, 27 years and 23 years. To prove their age they have not produced any specific age proof document. However, in the Aadhaar cards at Ex.P-8 series it is stated that the date of birth of 1st petitioner is 01.01.1963, the date of birth of 2nd petitioner is 26.09.1984, 3rd petitioner's is 27.06.1986 and 4th petitioner's is 14.06.1991.

48. The date of accident is 06.08.2014. So, as per Ex.P-16 petitioners are respectively aged 50 years, 29 years, 28 years and 23 years. Moreover, there is no cross-examination by the other side about the age of the petitioners. Accordingly, nothing is there to disbelieve the age of the petitioners as pleaded in the petition. Accordingly, their age is accepted.

49. Considering the age of the petitioners and their respective relationship with the deceased and the fact that they were forced to loose the deceased who is respectively the husband and father in an unfortunate accident, it is thought just and proper to award some reasonable compensation for loss of consortium to 1st petitioner; loss of love and affection to 2nd to 4th petitioners and loss of estate to all the petitioners.

50. Since the deceased died at his age 62 years, living behind his wife and sons totally 3 persons as his dependents, 1/3rd of his income should be deducted towards his personal expenditure and petitioners are not entitled for future prospectus.

51. Accordingly, petitioners are entitled for compensation under the heads mentioned below and the amount stated against them.

1. Loss of dependency Rs. 6,72,000/-

(Rs.12,000 x 12 x 2/3 x 7)

2. Loss of consortium to P-1 Rs. 50,000/-

3. Loss of Love and Affection Rs. 30,000/- (P-2 to P-4, Rs.10,000/- each)

4. Loss of Estate Rs. 1,00,000/-

(P-1 and P-4, Rs.25,000/- each)

5. Transportation of dead body and Funeral Expenses Rs. 25,000/-

Total: Rs.8,77,000/-

52. Considering the cost of living as on the date of the accident, it is thought fit to award interest at 9% p.a. from the date of petition till the realization of the compensation amount in its entirety.

53. Now in respect of liability. There is no dispute between the parties with regard to the fact that 2nd respondent is the RC owner cum rider of opposite two wheeler at the time of accident. Even, 1st respondent has contended that its liability if any is subject to the terms and conditions of the policy such as driving licence and vehicular documents, in the course of cross-examination it has concentrated only on its defence with regard to the drunk and drive.

54. Moreover, in his cross-examination, its officer i.e. RW-1 has specifically admitted that 2nd respondent had valid and effective driving licence to ride the class of motor cycle at the time of accident. As observed above, as per Ex.P-14, the charge sheet is filed against 2nd respondent only for Section 304 of IPC and there is no allegation with regard to any of the offences punishable under any of the provisions of MV Act. Therefore, it appears that on the date of accident, the opposite motor cycle had valid vehicular documents.

55. So far the defence of 1st respondent about the drunk and drive and thereby the breach of policy conditions, it is in the police papers that the 2nd respondent was under the influence of alcohol and it is drunk and drive case.

56. In support of the charge sheet at Ex.P-14 the police have relied on the FSL report which is also produced by the petitioners at Ex.P-12 wherein it is stated that the quantum of Ethyl alcohol is 83.39 mg/100ml blood. So, it appears that 2nd respondent was under the influence of alcohol and if the percentage of alcohol is taken note off, it is clear that with that much of percentage one could not have control over mind and body.

57. Therefore, as observed above, even there is no specific charge sheet with regard to the drunk and drive i.e. penal class in the MV Act, as observed it appears that since the jurisdictional police opted higher offence, they might have left penal clause for drunk and drive. But it is apparent on the face of record that 2nd respondent was under the influence of alcohol and it is drunk and drive case.

58. In support of his oral arguments that mere marking of document is not proof particularly with regard to the police papers that too the FSL report, counsel for 2nd respondent has placed his reliance on the decision reported in AIR 1971 SC 1865 wherein it is held that;

"Civil P.C. (1908), Order 13, R. 4 - Mere marking of a document as an exhibit does not dispense with its poof -(X-Ref. :- Evidence Act (1872), Section 61)."

59. He has also placed his reliance on the decision reported in 2010 AIR SCW 769 wherein it is observed that;

"(B) Evidence Act (1 of 1872), S. 64 -

Document - Admissibility.

It is true that ordinarily if a party to an action does not object to a document being taken on record and the same is marked as an exhibit, he is estopped and precluded from questioning the

admissibility thereof at a later stage. It is, however, trite that a document becomes inadmissible in evidence unless author thereof is examined; the contents thereof cannot be held to have been proved unless he is examined and subjected to cross- examination in a Court of law. (Paras 44, 48) The document which is otherwise admissible cannot be taken evidence only because no objection to the admissibility thereof was taken. In a criminal case, subject of course, to the shifting of burden depending upon the statutes and/or the decisions of the superiors Court, the right of an accused is protected in terms of Art. 21 of Constitution. The procedure laid in that behalf, therefore, must be strictly complied with. (Para 49)."

60. So, the sum and substance of the above observed reported decisions is that mere marking of documents itself is not sufficient and the document should be proved with cogent and corroborative piece of evidence and there is no dispute about the said settled principle of law.

61. But in the present circumstances of the case, as observed above it is in the police papers at Ex.P-1 to 14 particularly at Ex.P-12 and 14 as well as Ex.P-13 voluntary statement of the accused that at the time of accident, he was under the influence of alcohol. Of course, the authors of those documents are not examined before this Tribunal.

62. Moreover, it is important to note that there is presumption with regard to the police papers that they are prepared by the investigating officers while discharging their official duties in investigation of a crime. So far the expert opinion, there is presumption that unless otherwise is proved that those documents should be presumed as genuine documents.

63. 2nd respondent even has placed his reliance on the above observed decisions, he has not let in any rebuttal evidence to rebut those presumption with regard to the documents at Ex.P-1 to 14 particularly Ex.P-12 and 14 thereby the above observed decisions are not helpful to 2nd respondent.

64. Therefore, 1st respondent has successfully established that there is breach of policy conditions on drunk and drive. Accordingly, the liability cannot be saddled on the 1st respondent/insurance company. Hence, 2nd respondent being the RC owner alone is liable to pay the compensation.

65. Considering the age of the petitioners and their respective relationship with the deceased, it is thought just and proper to apportion the compensation amount amongst them at 50:10:20:20 respectively.

66. So, petitioners are entitled for the compensation of Rs.8,77,000/- at the rate of 50:10:20:20 together with interest at the rate of 9% p.a. from the date of petition till its realization in its entirety from 2nd respondent. Accordingly, issue No.3 is answered.

67. ISSUE No.4:- From the above discussions, this Tribunal proceeds to pass the following order.

ORDER The present petition filed by the petitioner under Section 166 of MV Act is hereby allowed in part with costs.

In the result, petitioners are entitled for the compensation of Rs.8,77,000/- at the rate of 50:10:20:20 together with interest at the rate of 9% p.a. from the date of petition till its realization in its entirety from 2nd respondent.

2nd respondent shall deposit the compensation amount together with interest and cost within 30 days from today.

On deposit of compensation, 1st, 3rd and 4th petitioners shall deposit Rs.2,00,000/-, Rs.75,000/- and Rs.75,000/- in Karnataka Bank, City Civil Court Branch, Bengaluru for a period of 5 years and the remaining compensation amount together with proportionate interest as well as cost to be paid to them individually through account payee cheque without awaiting further orders.

Since the compensation amount of the share of 2nd petitioner is meager, it is ordered that the entire compensation amount together with proportionate interest as well as cost to be paid to petitioners individually through account payee cheque without awaiting further orders.

Advocate fee is fixed at Rs.2,000/-.

Draw a decree accordingly.

(Dictated to the stenographer, transcribed by her, corrected and then pronounced in the open court by me on this the 21st day of November, 2015.) (K.KATYAYINI), XIII Addl. Judge & Member MACT Court of Small Causes, Bengaluru.

ANNEXURE LIST OF WITNESSES EXAMINED ON BEHALF OF PETITIONERS:

PW1: Smt. Rathnamma
PW2: Padmanabhan
PW3: G.S. Vinay Kumar

LIST OF WITNESSES EXAMINED ON BEHALF OF RESPONDENTS:

RW1: R. Jayashekara LIST OF DOCUMENTS EXHIBITED ON BEHALF OF PETITIONERS:

Ex.P1 : True copy of FIR with Complaint before Cottonpete police station, Ex.P2 : True copy of FIR before Chikpet police station with requisition of PI, Cottonpete police station, Ex.P3 : True copy of spot mahazar, Ex.P4 : True copy of spot sketch, Ex.P5 : True copy of seizer mahazar, Ex.P6 : True copy of Inquest mahazar, Ex.P7 : True copy of PM report, Ex.P8 : True copy of statement of witnesses (6 in nos.), Ex.P9 : True copy of notice u/s 133 of MV Act, Ex.P10 : True copy of reply to notice u/s 133 of MV Act, Ex.P11 : True copy of IMV report, Ex.P12 : True copy of FSL report, Ex.P13 : True copy of voluntary statement of accused, Ex.P14 : True copy of charge sheet, Ex.P15 : Salary certificates (2 in nos.), Ex.P16 : Notarised copy of

Aadhaar cards (4 in nos.) (original shown for perusal), Ex.P17: True copy of SB Account Statement Extract pertains to deceased Ex.P18 : Notarised copy of Appointment letter as a private agent (original shown for perusal), Ex.P19 : Notarised copies of Tax returns acknowledgement along with profit and loss account for the assessment year 2010-11 to 2012-13 (3 in nos.) (originals shown for perusal), LIST OF DOCUMENTS EXHIBITED ON BEHALF OF RESPONDENTS:

Ex.R1 : True copy of policy with terms and conditions, Ex.R2 : True copy of FIR with Complaint in crime No.219/14 on the file of Cottonpet police station, Ex.R3 : True copy of requisition of SHO of Cottonpet police station to SHO, Chikpet police station dtd.06.08.2014.

(K.KATYAYINI), XIII Addl. Judge & Member MACT Court of Small Causes, Bengaluru.